



PUBLIC SAFETY CADETS

RICHARDSON POLICE DEPARTMENT

RELEASE OF LIABILITY AND INDEMNITY AGREEMENT

G.O. 1.00.41-004
06/15/11

The State of Texas

County of Dallas

That I, the undersigned, [REDACTED], a private person and legal parent and/or guardian of [REDACTED], a minor and private person, for and in consideration of the privilege of our child's participation in the Richardson Police Department Public Safety Cadets Program, do recognize that our child's participation in the Public Safety Cadets Program involves certain dangers. My spouse and I hereby agree to forfeit any and all claims against the City of Richardson that may arise from participating in such activity, including but not limited to, motor vehicle accidents on either public streets or private property, or any personal injury or property damage resulting from the acts of a third person, or any personal injury or property damage arising from the negligent acts of the City of Richardson, the Richardson Police Department, its officials, agents and employees. My spouse and I hereby release the City of Richardson, its Police Department, officials, agents and employees, in both their public and private capacities, from any and all liability, claims, suits, demands, or causes of death claims pursuant to TEX. CIV. PRAC. & REM. CODE ANN. ch. 71, et. seq. (Vernon 1986) or any survival cause of action pursuant to TEX. CIV. PRAC. & REM. CODE ANN. sec. 71.021 (Vernon 1986), or any personal injury or property claims resulting from the negligent acts of the City of Richardson, the Richardson Police Department, its officials, agents and employees, that may arise from our child's participation in the Public Safety Cadets Program.

For the same above stated consideration, it is the express purpose of this agreement that I/we bind myself (ourselves) to defend, pay, and hold the City of Richardson, the Richardson Police Department, the officials, agents and employees of the City of Richardson, in both their public and private capacities, whole and harmless from any liability, claim, demand, suit or cause of action which may arise or be brought against the City of Richardson, the Police Department, the officials, agents and employees of the City of Richardson, in both their public and private capacities, which may arise from our child's participation in the Public Safety Cadets Program. Such actions may include, but are not limited to, any wrongful death claims pursuant to TEX. CIV. PRAC. & REM. CODE ANN. ch. 71, et. seq. (Vernon 1986), any survival claim pursuant to TEX. CIV. PRAC. & REM. CODE ANN. sec. 71.021 (Vernon 1986), or any claims, suits, or causes of action arising from the negligent acts of the City of Richardson, the Richardson Police Department, the officials, agents or employees of the City of Richardson.

It is further agreed that the execution of this release shall not constitute a waiver by the City of Richardson of the defense of governmental immunity, when applicable, or to defenses predicated on the Texas Automobile Guest Statute, TEX. CIV. PRAC. & REM. CODE ANN. ch 72 (Vernon 1986), or any other defenses recognized by the Courts of this State.



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By signing this release, I am representing to the Richardson Police Department and the City of Richardson, its officials, agents and employees, that I am of sound mind and that I have read this release and understand fully the terms expressed herein and voluntarily agree to said terms.

Signed, this the day of , 20

Signature:

Address:

Telephone:

Before me personally appeared , who appears to me to be of sound mind and fully capable of comprehending the terms of this agreement.

Given under my hand and seal of office, this day of , 20

Notary Public in and for Dallas County, Texas: